

The Isabgol Husk Grading and Marking Rules, 2015

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The Isabgol Husk Grading and Marking Rules, 2015

UNION OF INDIA

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The Isabgol Husk Grading and Marking Rules, 2015

Rule THE-ISABGOL-HUSK-GRADING-AND-MARKING-RULES-2015 of 2015

Published on 28 July 2015

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The Isabgol Husk Grading and Marking Rules, 2015

Published vide Notification No. G.S.R. 590 (E), dated 28th July, 2015

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 590 (E). - Whereas, the draft of the Isabgol Husk Grading and Marking Rules, 2015, was published as required by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide notification number G.S.R. 10 (E), dated the 5th January, 2015, inviting objections and suggestions from all persons likely to be affected thereby within forty-five days from the date on which copies of the said notification published in the Gazette of India were made available to the public;

And, whereas, copies of the said notification were made available to the public on the 4th February, 2015;

And, whereas, the objections and suggestions received from the public in respect of the said draft rules have been duly

considered;

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), and in supersession of the Isabgol Husk Grading and Marking Rules, 1982, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:-

1.

Short title, application and commencement.

(1)

These rules may be called the Isabgol Husk Grading and Marking Rules, 2015.

(2)

They shall apply to Isabgol Husk obtained from *Plantago ovata* Forsk (Family Plantaginaceae).

(3)

They shall come into force on the date of their final publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India;

(b)

"Authorised packer" means a person or a body of persons who has been granted Certificate of Authorisation to grade and mark Isabgol Husk in accordance with the grade standards and procedure provided under these rules;

(c)

"Certificate of Authorization" means a certificate issued under the General Grading and Marking Rules, 1988, authorizing a person or a body of persons to grade and mark Isabgol Husk with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e)

"grade designation mark" means the Agmark insignia referred to in rule 5;

(f)

"Schedule" means a Schedule appended to these rules.

(2)

Words and expressions used in these rules and not defined but defined in the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) and the General Grading and Marking Rules shall have the meanings respectively assigned to them in the said Act and the said rules.

3.

Grade designations.

- The grade designations to indicate the quality of Isabgol Husk shall be as specified in column 1 of the Table in Schedule II .

4.

Quality.

- For the purposes of these rules, the quality of Isabgol Husk shall be as specified in Schedule II.

5.

Grade designation mark.

- The grade designation mark shall consist of "AGMARK insignia" consisting of a design incorporating the Certificate of Authorisation number, the word "AGMARK", name of commodity and grade designation resembling the design as specified in Schedule I.

6.

Method of packing.

(1)

Isabgol Husk shall be packed in new, clean and dry jute bags, cloth bags, paper bags and card board cartons with inner lining of food grade material, food grade High Density Polyethylene laminated paper bags, food grade plastic containers or in glass bottles or such other type of containers as may be approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

The packing material shall be free from insect or fungal infestation and should not impart any toxic substance or undesirable odour or flavour to the product.

(3)

Isabgol Husk shall be packed in pack sizes as per provisions of the Legal Metrology (Packaged Commodities) Rules, 2011 made under sub-section (1), read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (

1 of 2010

) or as per the instructions issued by Agricultural Marketing Adviser from time to time.

(4)

Graded material of small pack sizes of the same lot or batch and grade shall be packed in a master container with complete details thereon along with grade designation mark.

(5)

Each package shall contain Isabgol Husk of the same type and of the same grade designation.

(6)

Each package shall be properly and securely closed and sealed.

7.

Method of marking.

(1)

The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package, namely :-

(a)

name of the commodity;

(b)

country of origin;

(c)

grade;

(d)

variety or trade name (optional);

(e)

lot or batch number;

(f)

date of packing;

(g)

net weight;

(h)

maximum retail price (inclusive of all taxes);

(i)

name and address of the authorised packer;

(j)

best before date month year;

(k)

any other particulars as may be specified under the Legal Metrology (Packaged Commodities) Rules, 2011 made under

sub-section (1), read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act 2009 (1 of 2010

), the Food Safety and Standards Act, 2006 (34 of 2006

), any other law for the time being in force or instructions issued by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with the General Grading and Marking Rules.

(3)

The ink used for marking on packages shall not contaminate the Isabgol Husk.

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, mark his private trade mark or trade brand on the graded packages which do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance with these rules.

8.

Special conditions of Certificate of Authorisation.

(1)

In addition to the conditions specified in the sub-rule (8) of rule 3 of the General Grading and Marking Rules, every authorised packer shall follow all instructions specified by the Agricultural Marketing Adviser from time to time.

(2)

The authorised packer shall either set up his own laboratory or have access to an approved State Grading Laboratory or cooperative or association laboratory or a private commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules for testing the quality of Isabgol Husk.

(3)

The premises shall be maintained in hygienic and sanitary conditions with proper ventilations and well lighted arrangement and the personnel engaged in these operations should be in sound health and free from any infectious, contagious or communicable diseases.

(4)

The premises shall have hygienic storage facilities with pucca floor and free from rodent and insect infestation.

(5)

The authorised packer and the aforesaid approved chemist shall comply with all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with the General Grading and Marking Rules from time to time.

I

(See rule 5)

Name of the commodity

Grade

II

(See rules 3 and 4)

Grade designation and quality of Isabgol Husk

1. Isabgol Husk shall consist of dry seed coats of the seeds of *Plantago ovata* Forsk (Family Plantaginaceae) meant for human consumption which is obtained by crushing the seeds and separating the husks by winnowing.

2. Minimum requirements: (i) Isabgol Husk shall -

(a)

be white to off-white in colour;

(b)

be odourless and have thin boat shaped structures, 2 to 3 mm long and 0.5 to 1 mm wide;

(c)

have bland and mucilaginous taste;

(d)

be free from insect or fungus infestation and from fermented, musty or other objectionable odours;

(e)
be free from any added colours, flavours and harmful foreign materials;

(f)
be free from visible extraneous matter.

(ii)
It shall comply with the restrictions in regard to the limits for metallic contaminants, crop contaminants, naturally occurring toxic substances, insecticides and pesticides residues, microbial requirements and other food safety requirements as specified under the Food Safety and Standards (Contaminants, Toxins and Residues) Regulations, 2011 and the Food Safety and Standards (Food Products Standards and Food Additives) Regulations, 2011, made under the Food Safety and Standards Act, 2006 (34 of 2006) for domestic trade.

(iii)
It shall comply with the residual limits of heavy metals, pesticides and other food safety requirements as laid down by the Codex Alimentarius Commission, or importing countries requirement for exports.

3. Criteria for grade designation

Table

Grade designation

Quality

Special characteristics (per cent by mass)

Moisture (Maximum)

Total ash on dry basis (Maximum)

Acid insoluble ash on dry basis (Maximum)

Organic extraneous matter (Maximum)

(1)

(2)

(3)

(4)

(5)

Special

10.0

2.0

0.1

0.5

Standard

11.0

2.5

0.2

1.0

General

11.5

2.9

0.3

2.0

Explanation. - (i) Organic extraneous matter includes broken or entire embryo, fragments of endosperm or capsular wall of fruits belonging to Isabgol crop.

(ii)
Extraneous matter means impurities of extraneous origin like sand, dirt or others which do not belong to the Isabgol crop.

4. Other requirements:

(i)

Identification test :

(a)

Swelling test : Transfer 1 gm sample to a 100-ml stoppered cylinder containing 90 ml of water, shake well for 30 seconds and allow to stand for 24 hours, shaking gently on three occasions during this period. Add sufficient water to produce 100 ml, mix gently for 30 seconds, avoiding the entrainment of air. Allow to stand for 5 hours and measure the volume of mucilage. Repeat the determination three more times. The average of the four determinations shall not be less than 40 ml.

(b)

Microscopic examination : The material shall conform to the following description :-

Elongated polygonal cells, 90 to 120 micron long, 18 to 27 micron wide, cellulose walled, thickened by secondary deposit.

(ii)

The condition of the Isabgol Husk shall be such so as to enable it to withstand transport and handling and to arrive in satisfactory condition at the place of destination.

(iii)

Isabgol Husk shall be stored in cool and dry place, maintained in a clean and hygienic condition.

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